

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
WENDELL PATILLO,

Plaintiff,

- against -

THE CITY OF NEW YORK, DETECTIVE
JASON MERCHAN, DETECTIVE FRED
DORCH and JOHN DOES "1-3",
The names being fictitious
and identity unknown,

Defendants.

-----X
To the above named defendant(s):

Index No.

Plaintiff designates
Bronx County as
place of trial.

The basis of the
venue is the
location of occurrence.

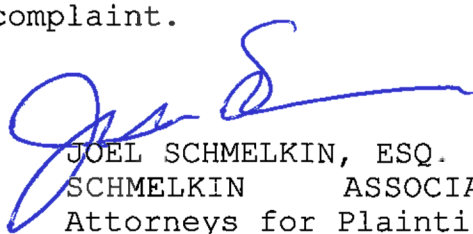
S U M M O N S

Plaintiff resides at:
2020 Monterey Avenue,
4F, Bronx, N.Y. 10457

County of Bronx

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgement will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
August 24 2022


JOEL SCHMELKIN, ESQ.
SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff

WENDELL PATILLO
Office & P.O. Address
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

THE CITY OF NEW YORK, 100 Church Street, New York, N.Y. 10007
DETECTIVE JASON MERCHAN, c/o NARCBX, 500 Abbott St., Bronx, NY
DETECTIVE FRED DORCH, c/o NARCBX, 500 Abbott St., Bronx, NY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
WENDELL PATILLO,

Index No.

Plaintiff,

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK, DETECTIVE
JASON MERCHAN, DETECTIVE FRED
DORCH and "JOHN DOES "1-3",
the names being, fictitious
and identity unknown,

Defendants.

-----X

Plaintiff, **WENDELL PATILLO**, complaining of the
defendants, by his attorneys, SCHMELKIN ASSOCIATES, P.C., hereby
sets forth and alleges, upon information and belief, as follows:

PRELIMINARY STATEMENT/IDENTIFICATION OF PARTIES

1. That, at all times hereinafter mentioned, and on
June 4, 2021, the plaintiff, **WENDELL PATILLO**, was and still is a
resident of the County of Bronx, City and State of New York.

2. That, at all times hereinafter mentioned, and on
June 4, 2021, the defendant, **THE CITY OF NEW YORK**, (hereinafter
referred to as "**THE CITY**") was and still is a domestic municipal
corporation, duly organized and existing under and by virtue of
the laws of the State of New York.

3. That, at all times hereinafter mentioned, and on
June 4, 2021, the defendant, **DETECTIVE JASON MERCHAN**,
(hereinafter referred to as "**MERCHAN**"), was and still is a
resident of the City and State of New York.

4. That, at all times hereinafter mentioned, and on June 4, 2021, the defendant, **DETECTIVE FRED DORCH**, (hereinafter referred to as "**DORCH**"), was and still is a resident of the City and State of New York.

5. That, at all times hereinafter mentioned, and on June 4, 2021, the defendant, "**JOHN DOES 1-3**", the names being **fictitious and identity unknown**, (hereinafter referred to as "**DOES**"), were and still are a resident of the City and State of New York.

6. That, the plaintiff, **WENDELL PATILLO**, has complied with all the conditions precedent to the commencement of the within action against the defendant, **THE CITY**; plaintiff's Notice of Claim was served on August ~~1~~², 2021, within ninety (90) days of the date that the within causes of action having been caused to accrue; that thirty (30) days have elapsed and the claim remains unpaid and unadjusted; that, the plaintiff, **WENDELL PATILLO**, agrees to testify at a "50H" municipal hearing, at a later date, in that criminal charges are currently pending against him, and to testify at this point, would be a violation of his fifth amendment rights under the United States Constitution and, that this action is being commenced herewith within one (1) year and ninety (90) days of the date that the within cause of action having been caused to accrue.

7. That at all times hereinafter mentioned, and on June 4, 2021, plaintiff **WENDELL PATILLO** was present inside of 2020

Monterey Avenue, Apartment 4F, in the County of Bronx, City and State of New York.

8. That the plaintiff, **WENDELL PATILLO**, was asleep, at approximately 6:00 A.M. while at his apartment at the aforementioned premises.

9. That plainclothes detectives, and/or the defendants, their agents, servants and/or employees, broke the door and entered the plaintiff's aforementioned apartment, without probable cause without reasonable cost and without justification.

10. That the aforementioned individuals, and/or the defendants, their agents, servants, and employees never showed the plaintiff, **WENDELL PATILLO** any search warrant.

11. That the aforementioned individuals and/or defendants, agents, servants, and employees, never advised the plaintiff **WENDELL PATILLO** as to why he was being arrested and being detained.

12. That other individuals were also present at the plaintiff's apartment, at that time, being guests of the plaintiff.

13. That the plaintiff, **WENDELL PATILLO** was arrested without probable cause, without reasonable cause and without justification, and falsely charged with criminally using drug paraphernalia; criminal possession of a controlled substance

and/or other crimes.

14. That the plaintiff was transported by van, to the 48th precinct, against his will, without probable cause, without reasonable cause, without justification and he was cognizant of such at all times and did not consent to said incarceration.

15. That the plaintiff, **WENDELL PATILLO** feared for his safety at all times when he was under the custody, control and false arrest/false imprisonment of the defendants, their agents, servants and employees herein.

16. That the plaintiff, **WENDELL PATILLO** was later held at Central Booking, against his will, by the defendants, their agents, servants and the employees therein.

17. That the plaintiff, **WENDELL PATILLO** had ultimately seen a judge, and was released on his own recognizance.

18. That the plaintiff **WENDELL PATILLO** went to court on several subsequent occasions.

19. That as a result of the foregoing, the plaintiff **WENDELL PATILLO** was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and upon information and belief his injuries are permanent in nature and effect.

AS AND FOR A FIRST CAUSE OF ACTION

(Assault and Battery)

20. That, the plaintiff, **WENDELL PATILLO**, repeats,

reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 19 with the same force and effect as if hereinafter more fully set forth at length herein.

21. That, on June 4, 2021, the plaintiff, **WENDELL PATILLO** was assaulted/battered by the defendant, and/or defendants by and through their agents, servants and/or employees.

22. That, the plaintiff, **WENDELL PATILLO**, was assaulted/battered without justification and without cause and without excuse.

23. That, the assault/battery took place at 2020 Monterey Avenue, Apartment 4F, in the County of Bronx, City and State of New York. and other locations wherein the plaintiff, **WENDELL PATILLO** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

24. That, at all times hereinafter mentioned and on June 4, 2021, and for sometime prior thereto, defendant, **MERCHAN**, was a New York City police officer, and/or agent, servant and/or employee of the defendant **THE CITY**, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

25. That, at all times hereinafter mentioned and on June 4, 2021, and for sometime prior thereto, defendant, **DORCH**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his

employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

26. That, at all times hereinafter mentioned and on June 4, 2021, and for sometime prior thereto, defendant, **DOES**, were New York City police officers, and/or agents, servants and/or employees of **THE CITY**, working in the scope and course of their employment as New York City Police Officers, and were employed by the defendant, **THE CITY**.

27. That, the aforementioned assault and battery of the plaintiff, **WENDELL PATILLO**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant **THE CITY**.

28. That, by reason of the foregoing, the plaintiff, **WENDELL PATILLO**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

29. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

30. That, by reason of the foregoing, the plaintiff,

WENDELL PATILLO, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION

(Negligent Hiring, Negligent
Training, Negligent
Retention and
Negligent Supervision)

31. That, the plaintiff, **WENDELL PATILLO** , repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 30 with the same force and effect as if hereinafter more fully set forth at length herein.

32. That, all of the aforementioned acts, committed by police officers, servants, and/or other employees of the defendant, **THE CITY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

33. That the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **THE CITY**.

34. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **MERCHAN**, were committed due to the negligence,

recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

35. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **DORCH**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

36. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **DOES** were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

37. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **MERCHAN**, who was employed by the defendant, **THE CITY**.

38. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police

officers, agents, servants, and/or other employees, including, but not limited to defendant, **DORCH**, who was employed by the defendant, **THE CITY**.

39. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **DOES**, who was employed by the defendant, **THE CITY**.

40. That, by reason of the foregoing, the plaintiff, **WENDELL PATILLO**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

41. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

42. That, by reason of the foregoing, the plaintiff, **WENDELL PATILLO** has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION

(False Arrest and
False Imprisonment)

43. That the plaintiff, **WENDELL PATILLO**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 42 with the same force and effect as if hereinafter more fully set forth at length herein.

44. That, on June 4, 2021, the plaintiff, **WENDELL PATILLO**, was caused to be falsely arrested and falsely imprisoned without probable cause.

45. That, the plaintiff, **WENDELL PATILLO**, was arrested without an arrest warrant.

46. That, the false arrest/false imprisonment took place at 2020 Monterey Avenue, Apartment 4F, in the County of Bronx, City and State of New York and thereafter continuing at other locations wherein the plaintiff, **WENDELL PATILLO** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

47. That, the aforementioned false arrest and false imprisonment of the plaintiff, **WENDELL PATILLO**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, **THE CITY**.

48. That, the aforementioned false arrest and false imprisonment of the plaintiff, **WENDELL PATILLO**, was carried out by defendant, **MERCHAN**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

49. That, the aforementioned false arrest and false imprisonment of the plaintiff, **WENDELL PATILLO**, was carried out by defendant, **DORCH**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

50. That, the aforementioned false arrest and false imprisonment of the plaintiff, **WENDELL PATILLO**, was carried out by defendant, **DOES** and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

51. That, by reason of the foregoing, the plaintiff, **WENDELL PATILLO**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

52. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving

intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

53. That, by reason of the foregoing, the plaintiff, **WENDELL PATILLO** , has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FOURTH CAUSE OF ACTION

(Violation of Fourth, Fifth and
Fourteenth Amendment Rights)

54. The plaintiff, **WENDELL PATILLO** , repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 53, with the same force and effect as if hereinafter more fully set forth at length herein.

55. That the plaintiff, **WENDELL PATILLO** did not commit any illegal act, nor did the individually named defendants have reason to believe he committed an unlawful act, either before or at the time he was falsely arrested and imprisoned, assaulted and battered, excessive force was used against him; maliciously prosecuted and deprived of his constitutional rights pursuant to the Fourth, Fifth and Fourteenth Amendments as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

56. That at all times hereinafter mentioned, the defendant, **MERCHAN** was employed in his respective capacity by

the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

57. That at all times hereinafter mentioned, the defendant, **DORCH** was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

58. That at all times hereinafter mentioned, the defendant, **DOES** were employed in their respective capacity by the defendant, **THE CITY** and was acting under the color of their official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

59. Defendant, **MERCHAN**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendant, **MERCHAN** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make

redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

60. Defendant, **DORCH**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendant, **DORCH** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

61. Defendants, **DOES**, are being sued in their personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendants, **DOES** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

62. The unlawful and illegal conduct of the

defendants, their agents, servants and/or employees and each of them, deprived plaintiff, **WENDELL PATILLO** of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York: The right of plaintiff, **WENDELL PATILLO** to be secure in his person and effects against unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff, **WENDELL PATILLO**, to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff, **WENDELL PATILLO**, not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

63. That the deprivation of plaintiff's Constitutional rights was the result of the unconstitutional acts of defendant while acting under color of state law and within the scope of his employ.

64. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting individuals without probable cause.

65. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's**

custom and/or policy of arresting minorities without probable cause.

66. That the deprivation of plaintiff, **WENDELL PATILLO's** Constitutional Rights was the result of the defendant, **THE CITY's** custom and/or policy of failing to discipline officers for arresting individuals without probable cause.

67. That the said customs and/or policies may be inferred from the existence of other similar Civil Rights actions that have been brought against the defendant, **THE CITY**.

68. That the detaining of plaintiff, **WENDELL PATILLO** without probable cause or justification was the result of customs and/or policies adopted by the defendant, **THE CITY**.

69. That the deprivation of plaintiff, **WENDELL PATILLO's** Constitutional rights was the result of the defendant, **MERCHAN's** arrest of the plaintiff **WENDELL PATILLO** without probable cause.

70. That the deprivation of plaintiff, **WENDELL PATILLO's** Constitutional rights was the result of the defendant, **DORCH's** arrest of the plaintiff **WENDELL PATILLO** without probable cause.

71. That the deprivation of plaintiff, **WENDELL PATILLO's** Constitutional rights was the result of the defendant, **DOES's** arrest of the plaintiff **WENDELL PATILLO** without probable cause.

72. That the deprivation of plaintiff **WENDELL PATILLO's** Constitutional Rights was a result of the defendant, **THE CITY's** custom and policy in failing to discipline officers for the use of excessive force.

73. That the deprivation of plaintiff, **WENDELL PATILLO's** Constitutional rights was the result of the defendant, **MERCHAN's** use of excessive force.

74. That the deprivation of plaintiff, **WENDELL PATILLO's** Constitutional rights was the result of the defendant, **DORCH's** use of excessive force.

75. That the deprivation of plaintiff, **WENDELL PATILLO's** Constitutional rights was the result of the defendant, **DOES** use of excessive force.

76. That the customs and/or policies adopted by the defendant, **THE CITY** exhibited a deliberate indifference to the Constitutional rights of plaintiff, **WENDELL PATILLO** .

77. That by reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not limited to the plaintiff's false arrest, false imprisonment, assault and battery, due to the negligence of the defendant and/or defendants, in the negligent hiring, negligent retention, and negligent training of its various employees and/or police officers, the plaintiff, **WENDELL PATILLO** was caused to have her civil rights as guaranteed under the U.S. Constitution, including,

but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the defendant and/or defendants herein, as set forth under 42 U.S.C. Section 1983.

78. That, by reason of the foregoing, the plaintiff **WENDELL PATILLO** was and/or will be injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and upon information and belief, his injuries are permanent in nature and effect.

79. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

80. That, by reason of the foregoing, the plaintiff, **WENDELL PATILLO**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FIFTH CAUSE OF ACTION

(Negligent Infliction
of Emotional Distress)

81. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 80 with the same force and effect as if more fully set forth at length herein.

82. By the actions described herein, defendants, each

acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, **WENDELL PATILLO**. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

83. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

84. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

85. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

86. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine *respondeat superior*.

87. That, by reason of the foregoing, the plaintiff, **WENDELL PATILLO**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities;

and, upon information and belief, his injuries are permanent in nature and effect.

88. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

89. That, by reason of the foregoing, the plaintiff, **WENDELL PATILLO**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SIXTH CAUSE OF ACTION

(Intentional Infliction
of Emotional Distress)

90. That the plaintiff, **WENDELL PATILLO**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 89 with the same force and effect as if hereinafter more fully set forth at length herein.

91. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which intentionally caused severe emotional distress to plaintiff, **WENDELL PATILLO**. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common

law rights as guaranteed by the laws and Constitution of the State of New York.

92. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

93. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

94. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

95. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine *respondeat superior*.

96. That, by reason of the foregoing, the plaintiff, **WENDELL PATILLO**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

97. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as

well as having performed intentional acts.

98. That, by reason of the foregoing, the plaintiff, **WENDELL PATILLO**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR AN SEVENTH CAUSE OF ACTION

(Failure to Intervene)

99. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 98 with the same force and effect as if more fully set forth at length herein.

100. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of the plaintiff, whose constitutional rights were being violated in their presence by other officers.

101. Defendants failed to intervene to prevent the unlawful conduct described herein.

102. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

103. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws

of the State of New York.

104. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

105. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

106. That, by reason of the foregoing, the plaintiff, **WENDELL PATILLO**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

107. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

108. As a result of the aforementioned conduct of defendants, plaintiff sustained personal injuries, including but not limited to emotional and psychological injuries.

109. That, by reason of the foregoing, the plaintiff, **WENDELL PATILLO**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of

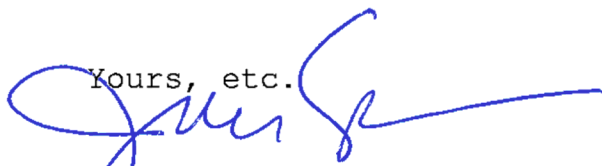
the State of New York.

WHEREFORE, plaintiff, **WENDELL PATILLO** , demands judgment against the defendants, on the First, Second, Third, Fourth, Fifth, Sixth, and Seventh causes of actions in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York; together with interest, as well as the costs, disbursements and legal fees pursuant to 42 U.S.C. Section 1988, of these causes of action.

Dated: New York, New York

August 24, 2022

Yours, etc.



Joel Schmelkin, Esq.
SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff,
WENDELL PATILLO
Office & P.O. Address
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

ATTORNEY'S VERIFICATION

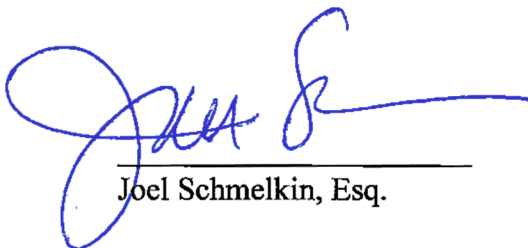
STATE OF NEW YORK)
) ss.:
COUNTY OF NEW YORK)

Joel Schmelkin, an attorney admitted to practice law in the State of New York, states, the following:

I am a member of the law firm of Schmelkin Associates, P.C., the attorneys of record for the plaintiff in the within action. I have read the foregoing **COMPLAINT** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief and that as to those matters, I believe it to be true. This verification is made by me and not by the plaintiff because the plaintiff does not reside in the County where Schmelkin Associates, P.C. maintains its office.

The grounds of my belief as to all matters not stated upon my knowledge are conversations with plaintiff and contents of the file maintained by Schmelkin Associates, P.C.

Dated: New York, New York
 August 24, 2022



Joel Schmelkin, Esq.

Index No.

Year 20

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

WENDELL PATILLO,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE JASON MERCHAN,
JASON MERCHAN, DETECTIVE FRED DORCH and JOHN DOES
"1-3", the names being fictitious and identity unknown

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

Wendell Patillo

Office and Post Office Address, Telephone

30 VESEY STREET, 4TH FLOOR

NEW YORK, N.Y. 10007

TEL: (212) 227-8865

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

Dated: August 24, 2022..

Signature

Print Signer's Name

JOEL SCHMELKIN, ESQ.

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

Check Applicable Box

☐NOTICE OF
ENTRYthat the within is a (certified) true copy of a
entered in the office of the clerk of the within-named Court on

20

☐NOTICE OF
SETTLEMENTthat an Order of which the within is a true copy will be presented for settlement to the
Hon. , one of the judges of the within-named Court,
at
on 20 , at M.

Dated:

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

To:

Office and Post Office Address, Telephone

30 VESEY STREET, 4TH FLOOR

NEW YORK, N.Y. 10007

Attorney(s) for